NEVER SOZA
Versus
THE STATE

HIGH COURT OF ZIMBABWE
MUZOFA & BACHI-MZAWAZI JJ
CHINHOYI, 25 February 2026

Criminal Appeal

Appellant in person
R Nikisi, for the respondent

MUZOFA J:

[1] After hearing the parties, we dismissed the appeal against conviction and sentence. Thereafter, the appellant requested for the written reasons. These are they.

Factual Background

[2] The appellant appeared before a magistrate's court (court *a quo*) facing four charges, attempted robbery, two counts of robbery and one count of rape in contravention of s 126 as read with s189 , s126 and s65 of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] ("the Criminal Law Code") respectively. He was jointly charged with two co accused persons. He was the 2nd accused during the proceedings. The appellant pleaded not guilty to all the charges. The appellant appeared before the court *a quo* as a self-actor and on appeal he prosecuted his appeal in person.

[3] The basis of the appellant's defence was that he was not at the crime scene when all the complainants were robbed. The State called five witnesses to prove its case. The appellant testified in his defence. He did not call any witness.

[4] After trial, the appellant was convicted on the two counts of robbery and one count of rape. He was acquitted on the attempted robbery charge. He was sentenced to a total of 20 years imprisonment on the two counts of robbery of which 4 years imprisonment was conditionally suspended for 5 years. In respect of rape, he was sentenced to 15 years. The Court a quo ordered the sentences to run concurrently. Effective sentence 16 years.

[5] Aggrieved by the decision of the court *a quo*, the appellant approached this court on the following grounds of appeal:

Grounds of Appeal

Ad Conviction

1. The court *a quo* erred when it misinterpreted the facts in order to secure conviction when it is stated it is the appellant who led the police to the recovery of the items belonging to the complainants when in actual fact the alleged goods was recovered before the appellant was arrested.
2. The court *a quo* misdirected itself by convicting the appellant of robbery in aggravating circumstances when in actual fact none of the aggravating circumstances listed in s126 of the Criminal Law Code had been established by the State.
3. The court *a quo* misdirected itself when it concluded that it was the appellant who was at the scene of crime on the date and time in question when there was no real evidence to support its findings.
4. The court *a quo* misdirected itself when it convicted the appellant without scrupulously analysed (sic) the evidence placed before it which if seriously taken could have resulted to a better finding and also be able to note that this was clearly a counterfeit allegation.
5. The court *a quo* misdirected itself when it convicted the appellant of rape when there was no evidence of an expert witness from the DNA Department to assist whether it was the appellant's organ that penetrated that of the complainant."

Ad Sentence

6. The court misdirected itself by condoning improper splitting of charges which resulted to a severe sentence. Also that the court a quo imposed a disproportionate and stiffer penalty without regard to the accused's personal circumstances and mitigation

[6] He sought an order that the conviction and sentence by the court *a quo* be quashed and he be found not guilty and acquitted. The relief sought relates to the appeal against conviction. There was no relief corresponding to the appeal against sentence. It is procedurally irregular to request an appeal Court to acquit an appellant where the appeal relates to sentence only.

[7] Where an appellant appeals against both conviction and sentence each appeal must be accompanied by the relief sought. In an appeal against sentence the relief seeks a reduction of the sentence. The hybrid approach of one relief where the appeal is against both conviction and sentence is irregular. As matters stand the appeal against sentence has no relief. It is defective.

[8] In coming to its decision the Court a quo considered the issue of identification and warned itself of the dangers of false incrimination borne out of mistaken identification. It reasoned that in the robbery case coupled with rape the complainant positively identified the appellant and

one of his accomplices as they spent some time with her and there was adequate illumination. The drill stolen during the robbery was also recovered.

[9] In respect of the robbery against Florence Manyamba it accepted evidence from the two witnesses who purchased the Dell Laptop and iPhone taken from her. The purchasers identified the appellant as one of the sellers.

[10] In respect of sentence it considered the seriousness of the offence, that it was aggravated as the appellants were armed and they pounced on the complainants in the middle of the night. The robbery was coupled with the commission of other offences.

Proceedings before this court

[11] In his oral submissions, the appellant emphasized that the court *a quo* wrongly convicted him at law and fact because there was nothing recovered from him and he was not identified at the crime scene. The appellant submitted that there was no evidence linking him to the commission of the rape offence. The appellant did not motivate this point any further .

[12] As regards sentence, the appellant submitted that the court *a quo* imposed a too severe sentence in the circumstances.

[13] The State opposed both appeals. On the conviction, the State argued that there was proof beyond reasonable doubt that the appellant committed the offences. The State argued that the appellant was identified as the person who robbed the complainants.

[14] Further, the State argued that the recoveries were made and the persons found in possession of the stolen property implicated the appellant. The appellant was also identified by the complainants during the robberies. There was no mistaken identity. During the course of the robberies, the rooms were well illuminated, there was opportunity for observation as the complainants were in close proximity to the appellant for lengthy periods of time, they actually spoke to the appellant and the lighting conditions were good.

[15] On sentence, the State submitted that the sentence imposed by the trial court was not severe. The State further contended that the court *a quo* correctly weighed the aggravating and mitigatory factors and found that the aggravating factors outweighed the mitigatory factors. The appellant was not a first offender; he had six previous convictions which showed his

criminal resolve. The sentence passed by the court *a quo* was argued to be in line with similar cases.

Issues for determination

[16] The grounds of appeal against conviction, though inelegantly set out raise factual issues whether the recovered items were recovered before the appellant's arrest, whether the appellant was wrongly convicted of aggravated robbery where there were no aggravating factors, whether there was conclusive evidence that the appellant committed the offence.

Factual and Legal Analysis

[17] Whether the property was recovered before the appellant's arrest is a factual issue. The trite position of the law is that an appeal Court is slow to interfere with factual findings of the lower court unless those findings were grossly unreasonable in the sense that no reasonable Court applying its mind to the same facts would have arrived at the same conclusion; or that the court had taken leave of its senses; or, put otherwise, the decision is so outrageous in its defiance of logic that no sensible person who had applied his mind to the question to be decided could have arrived at it.[1] Although the cited cases are civil matters , the principle applies in criminal matters with equal force.

[18] The appellant did not take the Court into his confidence on this ground of appeal. What is apparent and admits of no doubt is that before the Court a quo, the appellant indicated that he was arrested on the 2nd of September 2024. To his discredit he went on and said he was in Chehonye from 10 September to 27 October 2024. The dates do not reconcile. It means he was arrested before going to Chehonye, there was no evidence that he was released after arrest. He simply contradicted himself in his web trying to raise a belated alibi.

[19] The real issue on the recovered goods is that Philip Frank and Peter Musarurwa who purchased the IPhone and the laptop from the appellant said they transacted with the appellant in August. They did not state the specific dates. They could not remember when the appellant was brought to them by the Police to recover the items. The Court a quo found these two witnesses credible and accepted the evidence. The appellant himself did not impugn the two

[1]Herbstein and Van Winsen The civil Practice of The Superior Courts at page 738-9; Hama v National Railways of Zimbabwe 1996 (1) ZLR 664 (S) at 670

witnesses' evidence before this Court. They very fact that the items were recovered by the Police in the presence of the appellant shows that he had already been arrested.

[20] The Court a quo cannot be impugned in its finding. The finding was based on credible evidence. Naturally August is before September when the appellant was arrested. The ground of appeal lacks merit and is dismissed.

[21] The ground of appeal that the Court a quo misdirected itself in finding the appellant guilty of aggravated robbery is borne out of a failure to appreciate the provisions under which the appellant was charged. The preferred charge was cited as s126 (3) (a) which to my mind is incorrect. The charge should be contravening s126 (1) as read with s126 (3) (a). Subsection (1) creates the offence of robbery. There is no offence called aggravated robbery. The mis citation was not prejudicial to the appellant; there is no need to interfere with the proceedings on that basis.

[22] For the purposes of sentence the Court applies its mind to the question whether the robbery was committed in aggravating circumstances in terms of subsection (3) thereof. Subsection (3) is part of the penalty section which must be read in conjunction with subsection (2). The ground of appeal belongs to grounds of appeal against sentence and not conviction. This is because the Court made a finding that the robbery was aggravated.

[23] Having said so, the finding by the Court in assessing sentence that the robbery was committed in aggravating circumstances is unassailable. It was well founded on the evidence placed before the Court a quo. The complainants indicated that the appellant and his accomplice, the 1st accused in the Court a quo were armed with a gun. Subsection (3) of s126 of the Criminal Code provides,

> (3) For the purposes of subsection (2), robbery is committed in aggravating circumstances if the convicted person or an accomplice of the convicted person –
>
> (a) possessed a firearm or a dangerous weapon; or
>
> (b) inflicted or threatened to inflict serious bodily injury upon any person; or
>
> (c) killed a person;
>
> on the occasion on which the crime was committed.

[24] The evidence proved there was use of a firearm. I find no reason to interfere with the Court a quo's decision. The ground of appeal is dismissed.

[25] The last issue on conviction is whether there was proof beyond a reasonable doubt that the appellant committed the offence. This part answers issues raised by the appellant in his grounds of appeal and submissions before us.

[26] On identification, various case law and authoritative texts have addressed the issue. Where there is strong and positive identification, no corroboration is required. The flip side is true, where there is weak or poor identification some corroboration will be required. Identification is usually weak where the complainant did not have previous knowledge of the assailant, had limited time with the assailant in poor visibility. Generally, when was is under attack so many emotions are at play, it creates a terse environment that interferes with many faculties of a person. Thus, trial Courts must be wary in dealing with evidence of identification. I totally agree with the sentiments in *S v Duri HH410/23* that where possible the investigating officer must get a full description of the assailant from the witness at the time of recording the statement. That description then is tallied with the arrested person. The instructive remarks of the Court in the leading case of *S* v *Dhliwayo and Anor* 1985 (2) ZLR 101 (S) are worth repeating bearing in mind, that:

> "Because of the fallibility of human observation, evidence of identification is approached by the courts with some caution. It is not enough for the identifying witness to be honest: the reliability of his observation must also be tested. This depends on various factors such as lighting, visibility, and eyesight; the proximity of the witness his opportunity for observation, both as to time and situation; the extent of his prior knowledge of the accused; the mobility of the scene; corroboration; suggestibility; the accused's face; voice, build, gait and dress; the result of identification parades if any; and of course the evidence by or on behalf of the accused...These factors are not individually decisive but must be weighed one against the other in the light of the totality of the evidence and the probabilities..."
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> See also See *S* v *Nkomo* 1989 (3) ZLR 117 (S)

[27] There was no benefit of a full description of the appellant by the complainants to the Police before the Court a quo. However, and to the Court's credit it did not rely on the complainant's evidence only. Florence Manyanda was robbed and she could not identify the assailants. What linked the appellant to the offence was the IPhone and the laptop that was stolen from her.

[28] The two items were recovered from Phillip and Peter who purchased the items from the appellant and his accomplice. It is not the witnesses that indicated the appellant as the seller but the appellant approached the witnesses in the company of the Police to recover the items.

Phillip said he interacted with the appellant for some time during the negotiations. It was day time. He clearly identified the appellant. Further, he stated that when the appellant and his co-accused arrived at his homestead with the Police, he advised them he sold the phone to him and the phone was recovered from him. That was conclusive evidence which did not need further *evidence aliunde.*

[29] On the robbery and rape charges, Angeline Mutsiwa, said the house had brilliant lights, she said it was lit as the Court room. She spent about 45 minutes with the assailants and both of them raped her after they could not get the money they wanted. Of importance is that they stole some items including a drill that was recovered. Angeline positively identified the drill which was sold by the two accomplices. In essence the identification which to my mind was beyond reproach was also corroborated by the recovered drill.

[30] The belated defence of an alibi was just an afterthought. He stated that when the alleged offences were committed, he was at Chehonye Makonde, he went on 10 September 2024 returning on 27 October 2024. The State in the court *a quo* disproved the appellant's *alibi* defense.

[31] In the case of *S* v *Marowa and Ors* HH-245-24 the court held that the expectation is that an accused will proffer sufficient detail about his/her *alibi.* He/she must disclose the location, the persons he alleges to have been with and the times he alleges to have been at the alibi location. He must provide sufficient foundational information upon which the State can initiate investigations. The timing is also important; the *alibi* must be raised during investigations and not in Court otherwise it can be dismissed as an afterthought.

[32] A skeletal alibi which does not assist investigations amounts to no alibi defence. Of course, where it is raised early, the investigators also have a duty to inquire on the specifics on the *alibi.* There was no evidence that the alibi was raised during investigations. Secondly even before the Court the appellant raised a barren *alibi* and nothing could come out of it which to our mind shows that it was an afterthought.

[33] The appellant on his part was not a credible witness on his attempted alibi. He contradicted himself on the date of arrest and the dates he was in Chehonye. There was no established reason why Phillip and Peter would falsely implicate him.

[34] Having found no misdirection on the part of the trial court; this court finds no basis for interfering with the lower court's findings. As remarked by KORSAH J in *S v Masawi and Anor* 1996 (2) ZLR 472 (S) commenting on the findings of a lower court;

"If these findings have support in the facts established and in reasonable inferences, they are conclusive on appeal. After conviction, a verdict will not be set aside unless the record clearly shows that upon no hypothesis whatsoever is there substantial evidence to support it."

Ad Sentence

[35] Technically there is no valid appeal against sentence. Even if it was, it has no merit. Sentencing is in the discretion of the trial court. In *Munakamwe* v *The State* S-121-23 the Supreme Court expressed itself as follows:

> "The position is settled in our law that sentencing is, first and foremost, pre-eminently the discretion of the trial court. The purpose of discretion is certainly to allow the sentencer to select the sentence which he or she believes to be most appropriate in the individual case having regard to the facts and the circumstances of the offender.
>
> As to when an appeal court can interfere with the discretion of a trial court, it is also settled that interference can only be done where the sentence is disturbingly inappropriate or where the discretion has been exercised capriciously or upon a wrong principle."

[36] Following that guidance, in this case the appellant was convicted of two counts of robbery and one count of rape. The sentence for robbery committed in aggravating circumstances under s 126(2)(a) of the Criminal Law Code is imprisonment for life or any definite period of imprisonment. In other forms of robbery, the penalty is a fine not exceeding level fourteen or not exceeding twice the value of the property that forms the subject of the charge, whichever is the greater.

[37] As already stated the two robberies were committed in aggravating circumstances. The finding was based on cogent evidence before the Court a quo. They were armed with a gun which is a dangerous weapon. The appellant and accomplices invaded complainant's house during the night. That is a high level of invasion of privacy. The appellant had a number of relevant previous convictions. A sentence of 20 years per count does not induce a sense of shock.

[38] As regards the rape charge where the offence is committed in aggravating circumstances a person may be sentenced to life imprisonment or any definite period of imprisonment of not less than 15 years. Where there are no aggravating circumstances, a person may be sentenced to a period of not less than five years and not more than 15 years. In the present case, the complainant was gang raped by appellant and his accomplice. This amounted to an aggravatory factor justifying a stiff penalty. The sentence is in line with the established law and authorities.

[39] In a terse judgment, the Court a quo rightly so noted that the appellant had six relevant previous convictions. The suspended sentences in those previous convictions were brought into effect in some cases yet the appellant has steadily progressed deeper into crime. The appellant indeed demonstrated that he is now incorrigible and resolute in his path of illicit behaviour. It noted the appellant must be removed from society for some time.

[40] Even after imposing 10 years per count on the robbery charges. The Court rationalised the globular sentence. On the robbery charges of the 20 years imprisonment 4 years was suspended for 5 years on the usual conditions. After that it ordered that the sentences run concurrently. He will serve 16 years for two counts of robbery committed in aggravating circumstances and rape. Rape as a charge attracts such a sentence. In view of his previous convictions the sentence maybe on the lenient side. In *S* v *Kufandada* HH-233-25 the court related to approaches to sentence in rape and robbery cases and underscored that retribution is still part of our criminal justice system and long custodial sentences can be imposed in deserving cases. The justice delivery system must ensure that the public is protected and feel safe in their homes.

[41] Accordingly, the appeal against both conviction and sentence were dismissed.

Bachi–Mzawazi J Agrees

The National Prosecuting Authority, the State's legal practitioners.